

imposing generic hourly charges such as approximately \$135 per hour for management effort and approximately \$150 per hour for inspector effort as a condition of election-related inspection” in violation of Civil Code section 5205. (Complaint, ¶ 12.)

Defendant argues the critical distinction is that statutory restrictions on fees apply only to associations themselves, not to their vendors or management companies. Defendant cites to *Brown v. Professional Community Management, Inc.* (2005) 127 Cal.App.4th 532, where the court held that Section 1366.1 (now Section 56001) “by its terms applied only to associations, and did not limit fees of associations’ vendors such as property managers.”

The Complaint alleges that Civil Code section 5205 does not authorize the Association to impose general hourly review, management, or inspector charges as a condition of allowing inspection of ordinary association records. (Complaint, ¶ 13.)

This situation is different than the one in *Brown* because the plaintiff in *Brown* alleged and sued the homeowner’s association **and** management company over wrongful hourly fees, and in this instance, Plaintiff alleges and is only suing his homeowner’s association over wrongful hourly fees pursuant to Civil Code section 5205.

Plaintiff has successfully alleged a declaratory relief cause of action on the grounds that unlawful hourly rates were charged by Defendant to inspect the voting records. (Complaint, ¶¶ 12-13.)

#### **Second Cause of Action for Injunctive Relief**

Injunctive relief is a remedy, not a cause of action. (*Roberts v. Los Angeles County Bar Assn.* (2003) 105 Cal.App.4th 604, 618.) A cause of action must exist before a court may grant a request for injunctive relief. (*County of Del Norte v. City of Crescent City* (1999) 71 Cal.App.4th 965, 973.); *City of South Pasadena v. Department of Transportation* (1994) 29 Cal.App.4th 1280, 1293 [A permanent injunction is merely a remedy for a proven cause of action. It may not be issued if the underlying cause of action is not established.].)

Although an order sustaining a demurrer is proper because injunctive relief is not a cause of action, Plaintiff may still obtain injunctive relief if they prevail on a cause of action. (*Allen v. City of Sacramento* (2015) 234 Cal.App.4th 41, 65-66.)

#### **Conclusion**

For the reasons analyzed above, Defendant Reflections Maintenance Association’s Demurrer to Plaintiff’s first cause of action for declaratory relief is **OVERRULED**. The Demurrer is **SUSTAINED WITHOUT LEAVE TO AMEND** as to the second cause of action for injunctive relief.

16. 9:00 AM CASE NUMBER: MSC21-01176  
CASE NAME: VAUGHNS VS MUSUKULA  
STRIKE OR TAX COSTS  
FILED BY: VAUGHNS, THOMAS  
**\*TENTATIVE RULING:\***

**CONTINUED** to January 4, 2027, pursuant to the Stipulation and Order entered September 18, 2026.

17. 9:00 AM CASE NUMBER: MSC21-01176

CASE NAME: VAUGHNS VS MUSUKULA

TAX PLAINTIFF'S COSTS

FILED BY: VELLABOYANA, ANURADHA

**\*TENTATIVE RULING:\***

**CONTINUED** to January 4, 2027, pursuant to the Stipulation and Order entered September 18, 2026.

18. 9:00 AM CASE NUMBER: MSC21-02074

CASE NAME: BANERJEE VS. SEECUBIC INC

**\*HEARING ON MOTION IN RE: VACATE AND SET ASIDE ENTIRE DEFAULT AND DEFAULT JUDGMENT**

**FILED BY:**

**\*TENTATIVE RULING:\***

On the Court's own motion, this hearing is **CONTINUED** to November 2, 2026 at 9:00 a.m. in this Department.

#### Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C24-02351

CASE NAME: SANDRA HERNANDEZ VS. NFP CORPORATE SERVICES (CA), INC.

**\*HEARING ON MOTION FOR DISCOVERY DETERMINATION OF THE AMOUNT OF MONETARY SANCTIONS**

**FILED BY:**

**\*TENTATIVE RULING:\***

Defendants NFP Corporate Services (CA), Inc. and NFP CA Insurance Services, Inc. ("Defendants") filed three separate motions to compel further responses to discovery on December 30, 2025 (the "Motions to Compel Further Responses"). The Motions to Compel Further Responses was subsequently set for hearing on June 8, 2026. The Motions to Compel Further Responses were heard on June 8, 2026. See Order entered June 8, 2026 ("June 8th Order"). The Court ruled on the discovery matters at issue. *Id.*

The Court found that Plaintiff engaged in conduct that constituted misuse of the discovery process and that warranted the imposition of monetary sanctions (the "Monetary Sanctions"). See June 8th Order.

A briefing schedule was set for submission of further papers regarding the amount of the Monetary Sanctions and a further hearing was set on September 28, 2026.

#### Analysis

Defendants' supplemental declaration regarding Monetary Sanctions was filed on July 8, 2026. See Declaration of Brittany Rogers filed July 8, 2026 ("Rogers Decl."). The declaration summarizes scope of the work performed in connection with litigating the Motions to Compel Further Responses and the billing rates and hours for the various timekeepers doing that work. *Id.* at ¶13 *et seq.* A summary of hours worked, including narrative description of the work performed was proffered as well. *Id.* at **Exhibit A**. Also included was a declaration by prior counsel Annalisa Zulueta. *Id.* at **Exhibit B**. A total of